

July 18 Compliance Audit

Document date: July 18, 2024 Filed: November 3, 2025 Civil Action No. SYN-NDWV-25-CV-0618 Attachment to District ECF No. 43 District ECF No. 43-3

Executive Summary

Asterglen contract operations reviewed the Copper Kestrel BeaconRoute environment to compare technical activity with the April 15 Pilot License and the June 10 written load-test conditions. The review covers records available through July 18, 2024.

The signed license lists twelve terminals. Administrative and technical work provisioned twenty-nine additional Identifiers for evaluation of Copper Kestrel's unsigned June 3 expansion proposal, bringing the system total to forty-one by July 1. Provisioning status did not itself authorize ordinary operational use.

The audit found that the X-series group had progressed beyond initial mapping and isolated connector validation. Available events included patterns that required explanation because their timing, recurrence, or data source could indicate reliance outside the bounded test described by Asterglen.

Copper Kestrel and Meridian Silt cite the July 8 call as authority for continued activity. Asterglen's follow-up email limited that permission to monitored testing under the earlier writing. The difference has not been resolved by a signed change order.

Overall rating: material scope concern requiring written response, activity classification, and prompt status correction. The report does not calculate damages or decide legal remedies.

Audit Scope and Materials Examined

The review asks four operational questions: which terminal environments had Identifiers; what contractual or testing status was recorded; what kinds of events appeared after provisioning; and whether the available directions supported the observed stage.

Materials examined include the April 15 Pilot License and Schedule A, Copper Kestrel's June 3 proposed change order, Asterghen's June 10 conditions and acknowledgment, the June 14 Meridian Silt statement of work, the provisioning ledger through July 1, system event summaries, connector-status exports, and July 8 notes and emails.

The audit treats the Pilot License as the controlling signed scope document. It treats the proposed change order as evidence of a request, not acceptance. It treats the June 10 response as written permission for restricted evaluation. The July 8 materials are retained in their differing versions because no verbatim recording exists.

Review limitations are significant. An Identifier count does not establish how output was used. An event description may not show whether data was simulated, replayed, current but isolated, or relied on for ordinary dispatch. Customer-side decisions are not fully visible from platform logs. For those reasons, the audit flags classifications for response rather than assuming that every X-series event was unauthorized production.

The audit cutoff is July 18. Later communications, if any, are outside this report.

Inventory Reconciliation

The provisioning inventory contains twelve T-series Identifiers, BR-A01 through BR-A12. Each corresponds to a Licensed Terminal listed in Schedule A, and each was recorded as pilot active.

The same customer environment contains twenty-nine X-series Identifiers, BR-B01 through BR-B29. They correspond numerically to the environments described in Change Request CK-01. Their provisioning record says proposed/test, and none has a production effective date or completed change-order reference.

The combined technical count is forty-one. The signed licensed count remains twelve. The difference is twenty-nine, exactly matching the proposed additions. No unmatched forty-second Identifier was located, and no original T-series record was removed.

Connector-status information shows that the X-series entries were not all in the same stage on every date. Some records reflected mapping or authentication checks; others reflected load-ready or sampled states; a subset contained recurring event sequences requiring closer classification. A single label therefore cannot accurately describe every event in the group.

Control finding 1: inventory records are arithmetically complete. Control finding 2: commercial status is incomplete because the proposal lacks Asterglen's signature. Control finding 3: technical status advanced under test permissions, but the boundary between allowed sampling and operational reliance is contested.

The audit recommends retaining individual connector evidence instead of drawing conclusions solely from the forty-one-item total.

Activity and Permission Review

The June 10 conditions required isolated or controlled activity, separate records, monitored groups, and a review before production transition. They also stated that provisioning was not expansion approval.

Event summaries after July 8 show continued X-series configuration and repeated current-data samples. Asterglen's account allows a bounded load test but not output used for ordinary dispatch. Copper Kestrel's note reads the call as permission for a broader monitored evaluation using current inputs. Meridian Silt's record describes technical-stage approval while assigning license confirmation to Copper Kestrel.

The audit cannot determine from platform events alone whether a displayed result influenced a freight-routing decision. It can determine that some sampling recurred outside the shortest isolated validation windows and that the X-series group remained technically available. Those conditions increased the need for precise written status.

No signed change order, revised Schedule A, or production effective date was found. No later Asterglen writing removed the June 10 restrictions. The July 8 follow-up instead restated that ordinary production had not been approved.

Control finding 4: the documentary authorization supports monitored test activity. Control finding 5: the available writing does not support continuing production at twenty-nine additional terminals. Control finding 6: classification of particular events and any resulting harm requires customer information and a connector-by-connector response.

Required Response and Corrective Options

Copper Kestrel should provide, for each X-series environment, its current configuration state, event purpose, data source, responsible operational role, and whether BeaconRoute output informed an ordinary dispatch action. Meridian Silt should supply its corresponding work record and identify any instruction it believed altered the written test boundary.

Pending review, Asterglen recommends freezing new X-series configuration changes and preventing output from entering ordinary routing decisions. Existing logs should be preserved. A controlled shutdown should avoid destroying evidence needed to distinguish permitted testing from disputed use.

If Copper Kestrel elects to reduce the environment to the signed scope, the technical sequence would include stopping new X-series events, disabling proposed connectors, confirming that T-01 through T-12 remain stable, and reconciling the final Identifier state. Operations estimates that the configuration portion could be completed in approximately three business days with cooperation and continued administrative access.

That estimate concerns technical reduction, not the legal effect of earlier events, damages, or satisfaction of any contractual notice provision. Contract operations must separately determine the process required by Section 9.2, which states a written breach-notice and fifteen-calendar-day cure opportunity before termination or breach damages.

Alternatively, the parties may resume commercial review, but no environment should be treated as added until a proper change order is signed. A later agreement should state whether and when any prior test status changes.

Findings Register and Approval

Finding A: the signed April 15 Pilot License covers twelve terminals. Evidence strength: confirmed by executed Schedule A.

Finding B: Copper Kestrel proposed twenty-nine additions on June 3. Evidence strength: confirmed as a request; Asterglen signature absent.

Finding C: written conditions dated June 10 permitted restricted load evaluation and preserved the production boundary. Evidence strength: confirmed by sent and acknowledged messages.

Finding D: forty-one Identifiers were provisioned in total by July 1. Evidence strength: reconciled across the ledger and environment inventory.

Finding E: the July 8 oral discussion has materially different accounts. Evidence strength: confirmed dispute; exact words not established because there is no recording.

Finding F: X-series activity continued after that discussion and includes events requiring classification beyond initial setup. Evidence strength: platform and integration records support continuation; ultimate use remains open.

Finding G: technical reduction to twelve active terminals appears feasible in three business days if access and cooperation are maintained. Evidence strength: operations estimate, not completed cure.

Disposition recommendation: prepare connector questions for Copper Kestrel, preserve relevant logs, and coordinate any restriction with the contract procedure. As of July 18, this remained an internal assessment and was not transmitted as a Section 9.2 notice carrying a cure date. The audit makes no final liability finding and authorizes no termination or damages demand.

Approved by Asterglen contract operations on July 18, 2024. Organizational approval designation